

UNION AND TERRITORY

ARTICLES 1-4 • TERRITORIAL COMPOSITION • REORGANISATION • CESSION LIMIT • FEDERAL CONSULTATION

CORE THESIS: an indestructible Union with an adaptable internal map; legal flexibility gains legitimacy through consultation and viable transition.

SOURCE CONTROL: Constitution → India Code → Supreme Court → official current status → local OCR polity books

00

STAGE 00 ARTICLES 1-4: THE TERRITORIAL POWER HIERARCHY

ARTICLES 1-4 THE TERRITORIAL POWER HIERARCHY ARTICLE 1 INDIA, THAT IS BHARAT UNION OF STATES TERRITORY STATES + UNION TERRITORIES + ACQUIRED TERRITORIES

ARTICLE 1

India, that is Bharat = Union of States territory = States + Union territories +

ARTICLE 2

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 1
- India, that is Bharat = Union of States territory = States + Union territories + acquired territories
- ARTICLE 2

POWER / PROCEDURE

- Parliament admits into Union or establishes new States
- ARTICLE 3
- Parliament forms new States and alters area, boundary or name

CHECK

- ARTICLE 1
- PROVISION
- FIRST
- PRINCIPLE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (ARCHITECTURE): Articles 1 to 4 place States, Union Territories and acquired territory within India, but assign them

01

STAGE 01 ARTICLE 3 PROCEDURE: CONSULTATION WITHOUT A STATE VETO

ARTICLE 3 PROCEDURE CONSULTATION WITHOUT A STATE VETO PRESIDENT'S RECOMMENDATION REQUIRED BILL AFFECTS AREA, BOUNDARY OR NAME OF A STATE

++ PARLIAMENT IS NOT BOUND BY THOSE VIEWS

PRESIDENT'S RECOMMENDATION REQUIRED

BILL affects area, boundary or name of a State?

YES → President refers bill to affected State

CONSTITUTIONAL BASIS / ARTICLE

- PRESIDENT'S RECOMMENDATION REQUIRED
- BILL affects area, boundary or name of a State?
- YES → President refers bill to affected State legislature

POWER / PROCEDURE

- ++ specifies time for expressing views
- ++ may extend that time
- ++ Parliament is not bound by those views

CHECK

- NO
- PARLIAMENT
- PRESIDENT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (PROCEDURE): Article 3 requires presidential recommendation and State consultation, but Parliament is not bound

02

STAGE 02 ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCT

ARTICLE 2, ARTICLE 3 AND FOREIGN-TERRITORY TRANSFER ARE DISTINCT QUESTION CONSTITUTIONAL ROUTE ADMIT OR ESTABLISH NEW STATE ARTICLE BERUBARI UNION

100TH AMENDMENT, 2015 CONSTITUTIONAL ROUTE USED FOR INDIA-BANGLADESH LAND-BOUNDARY

CONSTITUTIONAL BASIS / ARTICLE

QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign

Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession

POWER / PROCEDURE

BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.

MAGANBHAI ISHWARBHAI PATEL (1969) boundary settlement differs from cession.

BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.

MAGANBHAI ISHWARBHAI PATEL (1969) boundary settlement differs from cession.

CHECK

100TH AMENDMENT, 2015 CONSTITUTIONAL ROUTE USED FOR INDIA-BANGLADESH LAND-BOUNDARY

QUESTION CONSTITUTIONAL ROUTE

CONSTITUTIONAL BASIS / ARTICLE

- QUESTION CONSTITUTIONAL ROUTE admit or establish new State Article 2 reorganise existing Indian unit Article 3 acquire foreign
- Article 1 can accommodate it cede Indian territory constitutional amendment under Article 368 settle uncertain boundary no cession

POWER / PROCEDURE

- BERUBARI UNION (1960) cession of Indian territory cannot be completed through Article 3 alone.
- MAGANBHAI ISHWARBHAI PATEL (1969) boundary settlement differs from cession.

CHECK

- 100TH AMENDMENT, 2015 CONSTITUTIONAL ROUTE USED FOR INDIA-BANGLADESH LAND-BOUNDARY
- QUESTION CONSTITUTIONAL ROUTE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CESSION): The sovereignty test separates cession from boundary settlement: surrender of accepted Indian territory

03

STAGE 03 FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGER

FIRST SCHEDULE AS A CONSTITUTIONAL CHANGE LEDGER TERRITORIAL LAW UNDER ARTICLE 2 OR 3 CHANGES FIRST STATE AND UNION-TERRITORY DESCRIPTION MAY

ARTICLE 4 DECLARATION SUCH LAW IS NOT DEEMED AN ORDINARY LEGISLATIVE ROUTE ARTICLE 4 SUPPORTS TERRITORIAL REORGANISATION IT DOES NOT BYPASS

TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may

change Fourth Schedule: Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

ARTICLE 4 DECLARATION such law is not amendment

CONSTITUTIONAL BASIS / ARTICLE

- TERRITORIAL LAW UNDER ARTICLE 2 OR 3 changes First Schedule: State and Union-territory description may
- change Fourth Schedule: Rajya Sabha seat allocation may include supplemental, incidental and consequential provisions

POWER / PROCEDURE

- ARTICLE 4 DECLARATION such law is not deemed an Article 368 amendment
- ORDINARY LEGISLATIVE ROUTE

CHECK

- ARTICLE 4 DECLARATION
- IT DOES NOT BYPASS

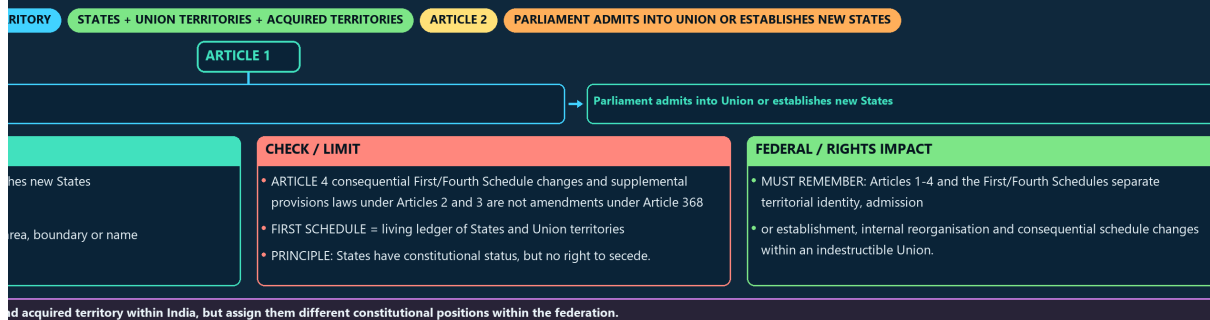
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LINGUISTIC): Linguistic reorganisation accommodated regional identity within a strong Union, showing that territory

04

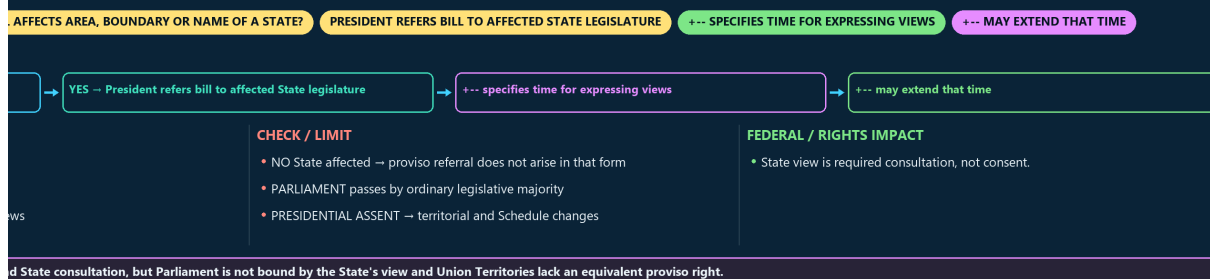
STAGE 04 INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956

INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956 1947-49 ACCESSION AND INTEGRATION OF PRINCELY STATES 1950 PART A, B, C AND D CLASSIFICATION

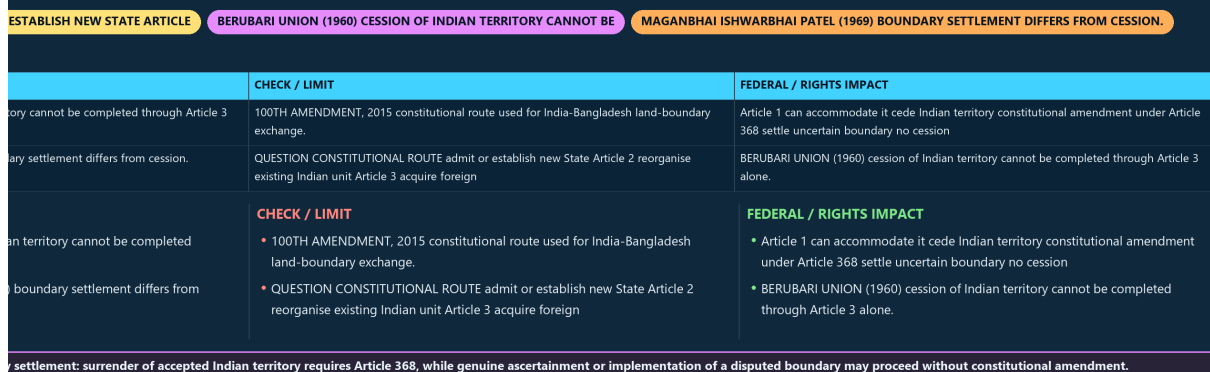
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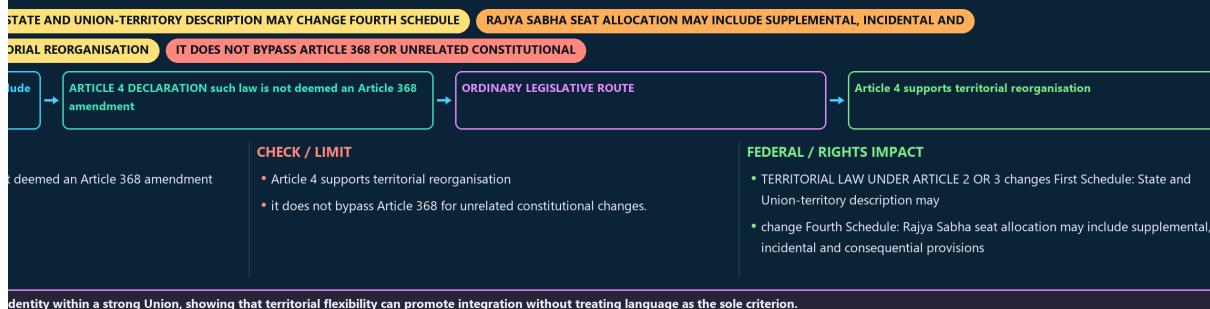
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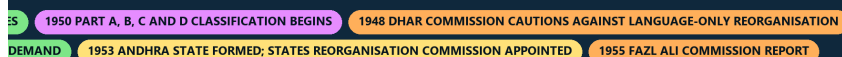
ER ARE DISTINCT



R



-1956



04

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LINGUISTIC): Linguistic reorganisation accommodated regional identity within a strong Union, showing that term

STAGE 04

INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956

INTEGRATION AND LINGUISTIC REORGANISATION, 1947-1956

1947-49 ACCESSION AND INTEGRATION OF PRINCELY STATES

1950 PART A, B, C AND D CLASSIFICATION BEGINS

1949 JVP COMMITTEE POSTPONES LINGUISTIC REORGANISATION

1952 POTTI SRIRAMULU'S DEATH INTENSIFIES ANDHRA DEMAND

1953 ANDHRA STATE FORMED; STATES REORGANISATION COMMISSION APPOINTED

1947-49 accession and integration of princely states

1950 Part A, B, C and D classification begins

1948 Dhar Commission cautions against language-only reorganisation

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECKPOINTS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (FEDERAL): Article 3 is a centralising safety valve: its flexibility can absorb regional demands, but legitimacy depends on

05

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LINGUISTIC): Linguistic reorganisation accommodated regional identity within a strong Union, showing that term

STAGE 05

POST-1956 MAP-MAKING: REORGANISATION, CREATION AND RENAMING

POST-1956 MAP-MAKING

REORGANISATION, CREATION AND RENAMING

1956 SETTLEMENT

1960 MAHARASHTRA + GUJARAT

1963 NAGALAND

1966 HARYANA + CHANDIGARH; PUNJAB REORGANISED

1960 Maharashtra + Gujarat

1963 Nagaland

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECKPOINTS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CURRENT): Article 3 is a centralising safety valve: its flexibility can absorb regional demands, but legitimacy depends on

06

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LINGUISTIC): Linguistic reorganisation accommodated regional identity within a strong Union, showing that term

STAGE 06

JAMMU AND KASHMIR REORGANISATION AS AN ARTICLE 3 STRESS TEST

JAMMU AND KASHMIR REORGANISATION AS AN ARTICLE 3 STRESS

2019 REORGANISATION

J&K UT WITH LEGISLATURE + LADAKH UT WITHOUT LEGISLATURE

IN RE ARTICLE 370 (2023 INSC 1058)

J&K STATEHOOD RESTORATION DIRECTED AT THE EARLIEST

STATUS CHECKED 28 AUG 2026

NO ENACTED RESTORATION LOCATED; LADAKH STATEHOOD/SIXTH-SCHEDULED

2019 REORGANISATION → J&K UT WITH LEGISLATURE

IN RE ARTICLE 370 (2023 INSC 1058)

State legislature's Article 3 views are recommendatory carving Ladakh as a UT

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECKPOINTS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (FINAL): Article 3 is a centralising safety valve: its flexibility can absorb regional demands, but legitimacy depends on

07

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LINGUISTIC): Linguistic reorganisation accommodated regional identity within a strong Union, showing that term

STAGE 07

NEW-STATE DEMAND: DEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNIT

NEW-STATE DEMAND

DEMOCRATIC CLAIM VERSUS VIABLE FEDERAL UNIT

CLAIM FOR NEW STATE IDENTITY + DISTANCE FROM CAPITAL

CONSTITUTIONAL RESPONSE

TESTS ADMINISTRATIVE VIABILITY FISCAL AND RESOURCE SUSTAINABILITY MINORITY PROTECTION

SMALLER CAN IMPROVE ACCESS; IT DOES NOT AUTOMATICALLY PRODUCE

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECKPOINTS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (OPENING): The framers wanted the Constitution to show that India is federal in structure, but not the product of

08

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LINGUISTIC): Linguistic reorganisation accommodated regional identity within a strong Union, showing that term

STAGE 08

EXACT VERIFIED PYQ CONTROLS: WORDING, DEMAND AND ANSWER OWNERSHIP

EXACT VERIFIED PYQ CONTROLS

WORDING, DEMAND AND ANSWER OWNERSHIP

2025 PRELIMS GS-I Q52

ARUNACHAL PRADESH + NAGALAND + TRIPURA PAIRS

2018 MAINS GS-I Q12

15 MARKS

2022 MAINS GS-I Q11

15 MARKS

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECKPOINTS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (OPENING): The framers wanted the Constitution to show that India is federal in structure, but not the product of

identity within a strong Union, showing that territorial flexibility can promote integration without treating language as the sole criterion.

1956

1950 PART A, B, C AND D CLASSIFICATION BEGINS

1948 DHAR COMMISSION CAUTIONS AGAINST LANGUAGE-ONLY REORGANISATION

DEMAND 1953 ANDHRA STATE FORMED; STATES REORGANISATION COMMISSION APPOINTED

1955 FAZL ALI COMMISSION REPORT



ic reorganisation

Andhra demand

anisation Commission appointed

CHECK / LIMIT

- 1955 Fazl Ali Commission report
- 1956 States Reorganisation Act + Seventh Amendment language accepted with unity, administration and economy
- Part classifications abolished

FEDERAL / RIGHTS IMPACT

- States and Union territories reorganised
- Language became accommodation's basis, not an automatic sole test.

to absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no constitutional veto.

AND RENAMING

+ GUJARAT

1963 NAGALAND

1966 HARYANA + CHANDIGARH; PUNJAB REORGANISED

1971 HIMACHAL PRADESH

1972 MEGHALAYA, MANIPUR AND TRIPURA

1956 SETTLEMENT

and

1966 Haryana + Chandigarh; Punjab reorganised

soa

CHECK / LIMIT

- 2000 Chhattisgarh, Uttarakhand and Jharkhand
- 2014 Telangana
- 2019 Jammu and Kashmir reorganised into two Union territories
- RENAMING uses Article 3 when a State name changes.

FEDERAL / RIGHTS IMPACT

- CURRENT MAP IN SOURCE: 28 States and 8 Union territories.
- CLOSE DISTINCTION: A State legislature supplies non-binding views under Article 3
- Article 4 uses ordinary legislative procedure, while foreign cession requires Article 368 under
- Berubari Union (1960) and a mere boundary settlement may not.

to absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no constitutional veto.

LE 3 STRESS TEST

RE + LADAKH UT WITHOUT LEGISLATURE

IN RE ARTICLE 370 (2023 INSC 1058)

STATE LEGISLATURE'S ARTICLE 3 VIEWS ARE RECOMMENDATORY CARVING LADAKH

ON LOCATED; LADAKH STATEHOOD/SIXTH-SCHEDULE DEMANDS REMAIN UNDER

ANISATION → J&K UT WITH LEGISLATURE + LADAKH UT WITHOUT LEGISLATURE

ure's Article 3 views are recommendatory carving Ladakh as a UT upheld

under Article 3(a) + Explanation I whole-State-to-two-UT conversion question NOT finally decided

ommendatory carving Ladakh as a UT

State-to-two-UT conversion question

CHECK / LIMIT

- J&K Statehood restoration directed at the earliest
- STATUS CHECKED 28 AUG 2026

FEDERAL / RIGHTS IMPACT

- No enacted restoration located; Ladakh Statehood/Sixth-Schedule demands remain under dialogue.
- EXAM LIMIT: do not say the Court generally approved every State-to-UT conversion.

to absorb regional demands, but legitimacy depends on consultation, transparency and negotiated transition because affected States possess no constitutional veto.

BLE FEDERAL UNIT

CE FROM CAPITAL

CONSTITUTIONAL RESPONSE

ARTICLE 3 REORGANISATION AFTER REQUIRED CONSULTATION

IVE ACCESS; IT DOES NOT AUTOMATICALLY PRODUCE

consultation

resource sustainability minority

capital,

CHECK / LIMIT

- assets, debt and employees security and territorial integrity democratic legitimacy and transition costs
- Smaller can improve access; it does not automatically produce capacity or equality.

FEDERAL / RIGHTS IMPACT

- CLAIM FOR NEW STATE identity + distance from capital + uneven development + administrative access
- CONSTITUTIONAL RESPONSE

dia is federal in structure, but not the product of a treaty among pre-existing sovereign units.

ND ANSWER OWNERSHIP

CHAL PRADESH + NAGALAND + TRIPURA PAIRS

OFFICIAL KEY C

ALL THREE.

STATEHOOD ACT AND ACCOMPANYING THIRTEENTH AMENDMENT ARE NOT MUTUALLY

2018 MAINS GS-I Q12

250 WORDS

250 WORDS

CHECK / LIMIT

- "Discuss whether formation of new states in recent times is beneficial or not for the economy of India."
- Answer demand = economic benefit, capacity, fiscal viability and transition costs.
- 2022 MAINS GS-I Q11

FEDERAL / RIGHTS IMPACT

- Political and administrative reorganization has been a continuous ongoing process since
- the mid-nineteenth century → prove continuity with colonial + post-1947 examples.

2022 MAINS GS-I Q11

15 MARKS

CONSTITUTIONAL BASIS / ARTICLE

- 2025 PRELIMS GS-I Q52
- Arunachal Pradesh + Nagaland + Tripura pairs → official key C: all three.
- Nagaland: Statehood Act and accompanying Thirteenth Amendment are not mutually exclusive.

POWER / PROCEDURE

- 2018 MAINS GS-I Q12
- 15 MARKS
- 250 WORDS

CHECK

- "Dis the
- Ansv cost
- 202

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Political and administrative reorganization has been a continuous ongoing process since the mid-nineteenth centu

09

STAGE 09

EXACT 10/15/20-MARK ARCHITECTURE: FLEXIBLE TERRITORY WITHIN AN INDESTR

EXACT 10/15/20-MARK ARCHITECTURE

FLEXIBLE TERRITORY WITHIN AN INDESTRUCTIBLE UNION

10 MARKS

150 WORDS

ARTICLE 1 THESIS

ARTICLES 2/3 DIS

10 MARKS / 150 WORDS

→ Article 1 thesis → Articles 2/3 distinction → Article 3 procedure → one case →

15 MARKS / 250 WORDS

CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS / 150 WORDS
- Article 1 thesis → Articles 2/3 distinction → Article 3 procedure → one case → verdict.
- 15 MARKS / 250 WORDS

POWER / PROCEDURE

- Articles 1-4 + First/Fourth Schedules → history → case law → federal balance → graded verdict.
- 20 MARKS / 250 WORDS
- Add chronology as argument, Explanation I State/UT nuance, exact J&K holding, criticism and reform.

CHECK

- Use ena
- ANS
- Ever ansv

MECHANISM / VERDICT — Every model: evidence → mechanism → analysis → limit → verdict → answer-specific improvement.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: evidence → mechanism → analysis → limit → verdict → answer-specific improvement.

10

STAGE 10

QUALIFIED FINAL SYNTHESIS: FLEXIBLE MAP, PROTECTED SOVEREIGNTY, NEGOTIA

QUALIFIED FINAL SYNTHESIS

FLEXIBLE MAP, PROTECTED SOVEREIGNTY, NEGOTIATED LEGITIMACY

INTERNAL FLEXIBILITY

ARTICLES 3-4 PERMIT ORDINARY-LAW REC

BERUBARI UNION (1960) EXCLUDES FOREIGN CESSION; ARTICLE 368 SUPPLIES

FEDERAL LEGITIMACY

STATE VIEWS ARE NOT A VETO, BUT TRANSPARENT CONSULTATION

INTERNAL FLEXIBILITY

Articles 3-4 permit ordinary-law reorganisation after constitutionally required consultation.

→ SOVEREIGNTY LIMIT

CONSTITUTIONAL BASIS / ARTICLE

- INTERNAL FLEXIBILITY
- Articles 3-4 permit ordinary-law reorganisation after constitutionally required consultation.
- SOVEREIGNTY LIMIT

POWER / PROCEDURE

- Berubari Union (1960) excludes foreign cession; Article 368 supplies the constitutional route.
- FEDERAL LEGITIMACY
- State views are not a veto, but transparent consultation, viability and negotiated transition matter.

CHE

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- 28 S
- FINA

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 3 is a centralising safety valve whose legitimacy depends on using flexibility as constitutional accommodati

11

STAGE 11

CURRENT TERRITORIAL STATUS AND AUTHORITATIVE-SOURCE GATE

CHECKED 7 SEP 2026

28 STATES + 8 UNION TERRITORIES

J&K: UT WITH LEGISLATURE

LADAKH: UT WITHOUT LEGISLATURE

OPERATIVE MAP

The First Schedule and operative reorganisation law support 28 States and 8 UTs. The 26 January 2020 DNH-DD merger reduced the UT count from nine to eight.

J&K LEGAL STATUS

The 2019 Act created J&K and Ladakh as UTs on 31 October 2019. No operative law or appointed-day notification restoring J&K Statehood was located through the check date.

SUPRE

In Re A State vi issue w

ANSWER-GRABBING LINE: current territorial claims become constitutional facts only through an operative legal instrument.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

EXPLANATION I IS A FAVOURITE CLOSE-OPTION TRAP.

IN ARTICLE 3, 'STATE' INCLUDES UNION TERRITORIES FOR CLAUSES

THI

THE FIRST SCHEDULE TRACKS TERRITORIAL UNITS; THE FOURTH SCHEDULE

ARTICLE 4 LETS A REORGANISATION LAW ADJUST BOTH TOGETHER.

ORDINARY LAW IS NOT

OPTIONAL DOCTRINE / CASE

- Explanation I is a favourite close-option trap.
- In Article 3, 'State' includes Union Territories for clauses (a) to (e), but not for the proviso requiring reference to a State legislature.
- This is why Parliament may restructure UTs without a comparable constitutionally mandated consultation step.
- The First Schedule and Fourth Schedule do different jobs.

ADVANCED LIMIT

- The First Schedule tracks territorial units; the Fourth Schedule t
- Article 4 lets a reorganisation law adjust both together.
- Ordinary law is not a lesser constitutional act in this chapter.
- An Article 3 law is ordinary in voting threshold, but constitution

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

250 WORDS

CHECK / LIMIT

- "Discuss whether formation of new states in recent times is beneficial or not for the economy of India."
- Answer demand = economic benefit, capacity, fiscal viability and transition costs.
- 2022 MAINS GS-I Q11

FEDERAL / RIGHTS IMPACT

- Political and administrative reorganization has been a continuous ongoing process since
- the mid-nineteenth century → prove continuity with colonial + post-1947 examples.

ongoing process since the mid-nineteenth century → prove continuity with colonial + post-1947 examples.

ORY WITHIN AN INDESTRUCTIBLE UNION

WORDS

ARTICLE 1 THESIS

ARTICLES 2/3 DISTINCTION

ARTICLE 3 PROCEDURE

ONE CASE

re →

15 MARKS / 250 WORDS

Articles 1-4 + First/Fourth Schedules → history → case law → federal balance → graded

20 MARKS / 250 WORDS

history → case law → federal balance →

CHECK / LIMIT

- Use validity → legitimacy → prudence; never substitute a current proposal for enacted law.
- ANSWER CONTROL
- Every model: evidence → mechanism → analysis → limit → verdict → answer-specific improvement.

FEDERAL / RIGHTS IMPACT

- Articles 1-4 + First/Fourth Schedules → history → case law → federal balance → graded verdict.

on I State/UT nuance, exact J&K

specific improvement.

SOVEREIGNTY, NEGOTIATED LEGITIMACY

ITY

ARTICLES 3-4 PERMIT ORDINARY-LAW REORGANISATION AFTER CONSTITUTIONALLY REQUIRED CONSULTATION.

SOVEREIGNTY LIMIT

NOT A VETO, BUT TRANSPARENT CONSULTATION

INTERNAL FLEXIBILITY

Y LIMIT

→ Berubari Union (1960) excludes foreign cession; Article 368 supplies the constitutional route.

cession; Article 368 supplies the

CHECK / LIMIT

- CURRENT-LAW DISCIPLINE
- 28 States + 8 UTs; J&K remains a UT with Legislature on the 28 Aug 2026 check.
- FINAL VERDICT

FEDERAL / RIGHTS IMPACT

- Article 3 is a centralising safety valve whose legitimacy depends on using
- flexibility as constitutional accommodation, not as a substitute for federal trust.

ent consultation, viability and negotiated

n using flexibility as constitutional accommodation, not as a substitute for federal trust.

E GATE

SLATURE

as UTs on 31 October 2019. No

In restoring J&K Statehood was

SUPREME COURT LIMIT

In Re Article 370 (11 Dec 2023) upheld Ladakh's carving and treated State views as recommendatory; the broader whole-State conversion issue was not finally decided.

EXAM SOURCE RULE

Demand, assurance, committee dialogue and judicial direction do not alter the map. Cite the Constitution, Act, appointed day and binding holding before political commentary.

TE CORE

CLUDES UNION TERRITORIES FOR CLAUSES

THIS IS WHY PARLIAMENT MAY RESTRUCTURE UTS WITHOUT A

THE FIRST SCHEDULE AND FOURTH SCHEDULE DO DIFFERENT JOBS.

JUST BOTH TOGETHER.

ORDINARY LAW IS NOT A LESSER CONSTITUTIONAL ACT IN

LIMIT

Schedule tracks territorial units; the Fourth Schedule tracks Rajya Sabha seat allocation.

is a reorganisation law adjust both together.

law is not a lesser constitutional act in this chapter.

law is ordinary in voting threshold, but constitutional in subject matter.

COMPARATIVE NUANCE

- That is why it can lawfully redraw the map while still remaining outside Article 368.
- Berubari Union (1960) is not just a territorial case.
- It also teaches exam method: identify whether the question is about internal diminution, cession,
- or interpretive use of a case in another topic such as the Preamble.

has been written.